

CIVRS2400813
TENTATIVE RULINGS 5-22-26
Department R17- Judge Gilbert G. Ochoa

This court follows California Rules of Court, rule 3.1308(a) (1) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

If you do not have internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the Administrative Assistant. You may appear in person at the hearing but personal appearance is not required and remote appearance by CourtCall is preferred during the Pandemic. (See www.sbcourt.org/general-information/remote-access)

If you wish to submit on the ruling, call the Court, check-in and state that you will be submitting on the Tentative, and your appearance is not necessary. But you must check in.

If both sides do not appear, the tentative will simply become the ruling.

If any party submits on the tentative, the Court will not alter the tentative and it will become the ruling.

If one party wants to argue, Court will hear argument but will not change the tentative.

If the Court does decide to modify tentative after argument, then a further hearing for oral argument will be reset for both parties to be heard at the same time by the Court.

This procedure is meant to minimize your waiting time in Court.

AMALIA VENTURA DE RODRIGUEZ

v.

NISSAN NORTH AMERICA, INC.

Motion(s): Motion for Relief

Movant(s): Defendant Nissan North America, Inc.

Respondent(s): Plaintiff Amalia Ventura De Rodriguez

DISCUSSION

Legal Standard

The court may relieve a party from a judgment, dismissal, order, or other proceeding taken against the party through mistake, inadvertence, surprise, or excusable neglect. A motion for

discretionary relief must be brought within a reasonable time, not to exceed six months from entry. (Code Civ. Proc., § 473, subd. (b).) The motion is timely.

Analysis

Defendant moves for relief under Code of Civil Procedure section 473, subdivision (b), from the Court's December 5, 2025 order granting Plaintiff's motion to compel further responses to RFPs. Defendant seeks discretionary relief based on alleged mistake, inadvertence, or excusable neglect arising from counsel's failure to oppose the motion and appear at the hearing. Mandatory relief is not at issue, as the challenged order is not a default, default judgment, or dismissal. (*Vandermoon v. Sanwong* (2006) 142 Cal.App.4th 315, 320.)

Plaintiff served her motion to compel further responses on July 1, 2025, setting the hearing for September 24, 2025, with Defendant's opposition due on September 11, 2025. (Gonzalez Decl. ¶¶ 8-11.) Defendant did not file an opposition. (Gilefsky Decl. ¶ 4.) The Court's Register of Actions reflects that on September 18, 2025, the Court rescheduled the hearing to December 5, 2025. On December 5, 2025, the Court granted Plaintiff's motion to compel further responses, and a Notice of Ruling was served on December 12, 2025. (Gilefsky Decl. ¶ 6.)

Defendant's counsel attributes the failure to oppose to an internal reassignment issue arising from an associate's maternity leave. (*Id.* at ¶ 3.) However, counsel also acknowledges that a partner remained assigned to the matter at all relevant times. (*Id.* at ¶ 2.) After learning of the ruling, Defendant sent a meet and confer email requesting that Plaintiff stipulate to set aside the order. (*Id.* at ¶ 7.)

The Court denies the motion. Defendant has not established excusable neglect within the meaning of section 473, subdivision (b). The explanation offered, a failure to reassign the case during an attorney's maternity leave, does not constitute an isolated calendaring or clerical error,

but instead reflects a breakdown in case management. Discretionary relief is not available where it is not demonstrated the error was that of “a reasonably prudent person under the same circumstances.” (*Jackson v. Bank of America* (1983) 141 Cal.App.3d 55, 58.) Critically, Defendant’s own showing confirms that a partner remained assigned to the matter and could have monitored the case and filed an opposition to Plaintiff’s discovery motion. (Gilefsky Decl. ¶ 2.) The failure here was not limited to a single missed deadline or inadvertent mistake; Defendant failed to oppose the motion, failed to monitor the case after the opposition deadline passed, failed to take advantage of the continued hearing date to file an opposition, and ultimately failed to appear at the December 5, 2025 hearing.

Defendant’s explanation amounts to a claim of being overwhelmed by internal workload and reassignment demands. Such circumstances do not constitute excusable neglect. As the Court explained in *Huh v. Wang* (2007) 158 Cal.App.4th 1046, an attorney’s “press of business” or heavy workload, standing alone, does not justify relief under section 473, subdivision (b). (*Huh v. Wang, supra*, at pp. 1423-1424.) Rather, relief is warranted only where the workload is accompanied by some external factor beyond counsel’s control, such as clerical error or extraordinary circumstances. (*Id.* at pp. 1424-1425.) Here, no such external factor exists. There is no evidence of clerical mishandling, system failure, or other circumstance outside counsel’s control; instead, the record reflects a failure to properly assign and monitor an active case.

The procedural posture further weighs against granting relief. Plaintiff propounded discovery in early 2025, engaged in months of meet and confer efforts, and filed a motion to compel in July 2025. (Gonzalez Decl. ¶¶ 3-7.) Despite obtaining an order in December 2025, Plaintiff remains without the requested documents, and trial is set for June 2026. Granting relief

at this stage would reward Defendant's lack of diligence, further delay discovery, and prejudice Plaintiff's ability to prepare for trial.

Accordingly, Defendant has not met its burden to demonstrate mistake, inadvertence, or excusable neglect under Code of Civil Procedure section 473, subdivision (b). Therefore, the court denies Defendant's motion for relief.

Movant to give notice.

Dated-

Judge